

11.	Tavik Industries, LLC v. Incipio Technologies, Inc. 19-1087170	Before the Court at present is the Motion to Quash Plaintiff Tavik Industries, LLC's Subpoena For Production Of Business Records To Incipio (Assignment For The Benefit Of Creditors), LLC, filed by Non-Party Buchalter, A Professional Corporation ("Buchalter") on 11/18/24. Defendant Monroe Capital Management Advisors, LLC ("MCMA") filed a Joinder on 4/3/25. By this Motion. Buchalter seeks an order quashing the subpoena issued by Plaintiff Tavik Industries, LLC ("Plaintiff") on 10/25/24 to an entirely separate non-party, Incipio (Assignment for The Benefit Of Creditors), LLC ("ABC"), as shown in ROA 558, Ex. A, for Request Nos. 1, 2, 4-9, and 12-16 in the Subpoena. As a preliminary matter, it is not apparent that Buchalter even has standing to bring the Motion. Buchalter does not claim to represent the subpoenaed party, ABC. Instead, it seeks relief based on its assertion that communications which are (or at least were) subject to the attorney-client privilege between Buchalter and its former clients, Incipio Technologies, Inc. ("ITI") and Incipio, LLC ("Incipio"), are within the scope of the requests at issue. However, <i>C.C.P. § 1987.1(b)</i> identifies categories of persons with standing to bring a motion to quash thereunder. Buchalter has not shown that any of those categories apply to it here. Buchalter claims that it nonetheless has standing, citing <i>Powers v. Ohio</i> (1991) 499 U.S. 400, 410 for the proposition that litigants may assert the legal rights of third parties if, among other things, the litigant would suffer a distinct and palpable injury. But Buchalter is not a litigant here. Nor has it shown that it would suffer a distinct and palpable injury without the requested relief, as the client is the holder of the attorney-client privilege. (<i>OXY Resources California LLC v. Superior Court</i> (2004) 115 Cal.App.4th 874, 901; <i>Ev. Code §§ 953, 954</i>.) Buchalter has not shown here that it is authorized to assert the attorney-client privilege on behalf of its former clients under <i>Ev. Code §954</i>. Nor has it addressed who now holds the rights to assert that privilege. If it is ABC, there is no evidence presented here to show that ABC is asserting any privilege claim as to prior communications between ITI/Incipio and Buchalter. If it is not ABC, yet ABC was provided with materials otherwise subject to an attorney-client privilege which had belonged to ITI/Incipio, potential waiver has not been adequately addressed here. In addition, even if the belated joinder by MCMA could suffice to support a claim of standing under <i>C.C.P. § 1987.1</i>, it has shown no basis for relief here, as it does
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		not claim that it is the holder of any attorney-client privilege at issue here. Buchalter or Monroe have also not shown why either has standing to object based on the breadth of the requests or any burden to respond, as the subpoena at issue was not directed to either of them. Nor have either demonstrated any other basis for the requested relief. In contrast, Plaintiff has made a showing of good cause for the requests at issue, and that the materials sought are not otherwise available (Opp, pp. 15-16; Katz Decl. ¶ 5, and Ex. 3.) Neither Buchalter nor Monroe have shown contra. The Motion is therefore DENIED. However, as Buchalter seems to have brought the motion in good faith and with some reasonable justification, Plaintiff's request for sanctions is also DENIED. Plaintiff's Objection, filed as ROA 912, is OVERRULED as to the Joinder overall, but SUSTAINED as to the unsupported factual assertions presented therein. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
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